BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY STATE OF OREGON

In the Matter of Affirming Compliance with State and Federal Law and Requesting That the State of Oregon Address Counties' Federal Funding and False Claims Act Exposure	)))))	Resolution No. 2026-039

WHEREAS, ORS 181A.820 to 181A.829 and ORS 180.805 to 180.810 (together, the "State Immigration Laws," including the Sanctuary Promise Act of 2021) restrict the extent to which every Oregon public body, including counties and sheriffs, may inquire into immigration status, share information with, provide facility access to, or otherwise assist federal immigration authorities; no county may exempt itself from these restrictions; and Josephine County has adopted no ordinance, policy, or practice of its own limiting such cooperation, so that any limit on the County's cooperation arises solely from state law; and

WHEREAS, since January 2025 federal executive orders and agency actions have sought to suspend or condition federal funds to "sanctuary jurisdictions," and on August 5, 2025 the United States Department of Justice so designated the State of Oregon itself, on the basis of characteristics that the State Immigration Laws impose on every Oregon county; and

WHEREAS, federal grants are awarded on the condition that the recipient certify compliance with applicable federal laws, regulations, executive orders, and program conditions, and federal agencies have begun to include in those certifications express terms concerning cooperation with federal immigration enforcement; and

WHEREAS, under the federal False Claims Act, 31 U.S.C. §§ 3729-3733, a "person" that knowingly makes a false certification material to a federal payment is liable for three times the government's damages plus a civil penalty for each claim; any private person, whether or not harmed, may sue under seal in the name of the United States and keep 15 to 30 percent of the recovery; and the United States Supreme Court has held that a State is not a "person" subject to that Act (Vermont Agency of Natural Resources v. United States ex rel. Stevens, 529 U.S. 765 (2000)) but a county is (Cook County v. United States ex rel. Chandler, 538 U.S. 119 (2003)), so that the State bears no False Claims Act exposure for the policy it enacted while the counties required to carry it out bear all of it; and

WHEREAS, the State Immigration Laws authorize enforcement against public bodies that fail to follow them, so a county that cooperates with federal immigration authorities beyond what state law permits risks liability under state law, while a county that cannot certify full compliance with federal grant conditions risks loss of federal funds and liability under the federal False Claims Act; and

WHEREAS, the Board values its partnership with the State, does not challenge the validity of the State Immigration Laws, and seeks dialogue and practical relief rather than confrontation;

NOW, THEREFORE, IT IS HEREBY RESOLVED that Josephine County will comply with state and federal law and will cooperate with federal, state, and local law enforcement, including federal immigration authorities, to the fullest extent the law permits, and that the County has adopted, and intends, no policy of its own limiting that cooperation.

IT IS FURTHER RESOLVED that Josephine County respectfully asks:

(a) The Legislative Assembly to consult with the Association of Oregon Counties, the Oregon State Sheriffs' Association, and affected counties, and weigh counties' federal funding and False Claims Act exposure, before enacting or expanding laws restricting cooperation with federal immigration enforcement;

(b) The Governor or the members of the Legislative Assembly representing Josephine County to request, and the Attorney General to issue, formal guidance and model disclosure language for federal grant certifications that address immigration-related cooperation or 8 U.S.C. §§ 1373 and 1644, and to ensure that for funds passed through state agencies such certifications are made by the State as prime recipient rather than flowed down to counties;

(c) The Legislative Assembly to enact legislation committing the State to defend and indemnify counties and their officers against False Claims Act claims arising from good-faith compliance with state law, with such indemnification to include attorney fees, investigation costs, settlement judgments, penalties, and related litigation expenses;

(d) The Legislative Assembly to make any county whole for federal funds withheld, reduced, recouped, suspended, terminated, or required to be repaid because of the county's compliance with the State Immigration Laws;

(e) The Governor to seek written acknowledgment from federal grantors that Oregon counties' cooperation is constrained by state law; and

(f) The Legislative Assembly to consider whether targeted amendments, such as permitting a public body to act where necessary to satisfy a lawful condition of federal funding, could reduce counties' exposure without abandoning the Legislature's policy objectives.

IT IS FURTHER RESOLVED that the Board shall transmit this Resolution, by letter signed by its members, to the Governor, the Attorney General, the presiding officers of the Legislative Assembly and the members representing Josephine County, the Association of Oregon Counties, the Oregon State Sheriffs' Association, and the boards of commissioners of the other Oregon counties, with an invitation to join in these requests.

IT IS FURTHER RESOLVED that nothing in this Resolution is an admission that any prior certification was inaccurate, a declaration that the County is or is not a "sanctuary jurisdiction" within the meaning of any federal order, list, or grant condition, or a challenge to the validity of any state or federal law. This Resolution takes effect upon adoption.

DATED THIS _____ day of October, 2026.

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

_____
Ron Smith, Chair

_____
Colene Martin, Vice Chair

_____
Gary Richardson, Commissioner

Josephine County, Oregon
Governing Body of the
Josephine County 4H/Extension and Service District

Open to all applicants. Awards are based on demonstrated benefit to agricultural education in Josephine County.

1. Date: _____Organization: _____
2. Applicant Type:

   ☐ Non-Profit ☐ Business ☐ Government ☐ Other: _____
3. Program Type:

   ☐ Currently existing agricultural education project or program
   ☐ New agricultural education project or program
   ☐ Other:_____
4. Applicant Name and Title: _____
5. Additional Applicants, Partners or Affiliates_____
6. Mailing Address:_____

   City: _____ State: _____ Zip Code: _____

   Email: _____ Phone #: _____

   Website: _____
7. Title of Proposed Project or Program: _____
8. Estimated Start Date: _____ Estimated End Date: _____
9. Educational Impact — check all that apply; describe fully in Attachment 1:

   ☐ Job Training
   ☐ Formal credit toward a diploma, degree or certificate
   ☐ Increased public knowledge about agriculture
   ☐ Improved participation in competitive agricultural programs
   ☐ Other educational benefit: _____

11. Total Project or Program Budget: $ _____ Amount Requested: $ _____
12. Do you possess all licenses applicable to your project or program? If yes, please attach a copy. If none are required, state “N/A.” _____
13. Federal Tax ID/EIN and year established (not required for governmental applicants): _____
14. Do you have an existing relationship with Josephine County or the 4H/Extension and Service District (employment, contract, advisory board member, etc.)? If yes, please list.. _____
15. Is your entity registered with the Oregon Secretary of State? If yes, please list all members and attach a printout of the registration: _____

    _____
16. Has your organization been debarred from any local, state, or federal agencies? If yes, please list and describe: _____

    _____

FOR COUNTY USE ONLY

Reviewed by: _____ Date: _____

Josephine County Legal Counsel

Comments: _____

Reviewed by: _____ Date: _____

Josephine County Finance Director

Comments: _____

Please submit the following information. Applicants that do not submit the following will not be presented for consideration:

1. Project: Please provide a written description of the project or program and how the funds would be used if granted. Describe the anticipated educational impact to Josephine County. Please define success of the project and identify milestones.

2. Budget: Please provide a detailed budget for the project or program and a requested timeline for funding if awarded.

3. Background: Please describe your general experience in any similar or related educational development activities. Also provide background information, including the location and size of the applicant entity. Please list any business license numbers or other relevant licenses, with the license numbers and expiration dates, if applicable.

4. References: Provide a list of three (3) persons who may be contacted for references, along with contact names and telephone numbers or email addresses.

By submitting this Application, the Applicant certifies that:

1. All information provided in this application is true, accurate, and complete to the best of the Applicant's knowledge and belief;
2. If awarded agricultural education funds, the Applicant will comply with all applicable state, federal, and local laws in the performance of the project;
3. Submission of this Application does not create a contract with the County; if selected, the County and the Applicant will attempt to negotiate a contract in good faith. Awarded funds are administered through the 4H/Extension and Service District budget process, as directed by the governing body and the Finance Director; and
4. The Applicant understands that the 4H/Extension and Service District reserves the right to reject, for any reason and without liability, any and all Applications, and to cancel this process at any time prior to executing a contract with, or authorizing funding for, the Applicant. Execution of this contract occurs if and when the funds are fully disbursed to the applicant.

Signature of Applicant: _____ Date: _____

Date Approved by Commissioners: _____ Amount Approved: $_____

_____, Chair _____, Vice Chair _____, Commissioner

Submit Your Application

Please submit your application, along with all needed supporting documents, via one of the following methods:

1) Email: finance@josephinecounty.gov
2) Mail Application to:

   ATTN: 4H/Extension and

   Service District

   Finance

   500 NW 6th St.

   Grants Pass, OR 97526
3) Submit your application in person to the Board of County Commissioners' Office at the Josephine County Courthouse (500 NW 6th St.).